

STATE OF WASHINGTON) NO.
 : ss
COUNTY OF KING) SEARCH WARRANT

Upon the sworn complaint made before me there is probable cause to believe that the crime(s) of **Telephone Harassment, RCW 9.61.230, Stalking, RCW 9A.46.110, and Identity Theft, RCW 9.35.020**, has been committed and that evidence of that crime; or contraband, the fruits of crime, or things otherwise criminally possessed; or weapons or other things by means of which a crime has been committed or reasonably appears about to be committed; or a person for whose arrest there is probable cause, or who is unlawfully restrained is/are concealed in or on certain premises, vehicles or persons.

1. Search, within 10 days of this date, the premises, vehicle or person described as follows:

The residence located at 123 Smith Street, in the city of Seattle, county of King; [property physical description].

(the Affidavit for Search Warrant is attached and incorporated by reference and may be used in determining the property covered by this warrant)

Records, in whatever form created or stored, including records located in any computer in that location connected to or capable of being connected to the Internet. The evidence would include:

- └ Records of any e-mail or other electronic communication showing
 - └ the placement of the ads
 - └ visits to Victim's website
 - └ efforts to obtain information about Victim
 - └ knowledge or use of the ustc.edu website or e-mail account
- └ Copies of any of the ads

- [Copies of any of the media reports of this incident
- [Evidence of any motive for these actions
- [Evidence of use of the computer(s) by any individual
- [Evidence of dominion and control
- [Any computers found on site which are connected to the Internet or capable of being connected to the Internet (including any computer with a modem or network interface card), along with all peripheral equipment which demonstrates electronic communication capability or which is needed to analyze and view the contents of any storage media, and any storage devices or media, may be taken offsite for forensic examination

3. Promptly return this warrant to me or the clerk of this court; the return must include an inventory of all property seized.

A copy of the warrant and a receipt for the property taken shall be given to the person from whom or from whose premises property is taken. If no person is found in possession, a copy and receipt shall be conspicuously posted at the place where the property is found.

Date/Time: _____

JUDGE

Printed or typed Name of Judge

() This warrant was issued by the above judge, pursuant to the telephonic warrant procedure authorized by JCrR 2.10 and CrR 2.3, on _____ 20____ at _____ .m.

Printed or Typed Name of Peace Officer, Agency
and Personnel Number

Signature of Peace Officer Authorized to Affix
Judge's Signature to Warrant

STATE OF WASHINGTON)
 : SS
COUNTY OF K I N G)

NO.

AFFIDAVIT FOR SEARCH WARRANT

(X) Evidence of the crime(s) of **Telephone Harassment, RCW 9.61.230, Stalking, RCW 9A.46.110, and Identity Theft, RCW 9.35.020,**

() Contraband, the fruits of a crime, or things otherwise criminally possessed, and

(X) Weapons or other things by means of which a crime has been committed or reasonably appears about to be committed, and

() A person for whose arrest there is probable cause, or who is unlawfully restrained

The residence located at 123 Smith Street, in the city of Seattle, county of King; [physical property description]

I have been employed by the King County Sheriff's Office as a deputy sheriff for about nine years. I have attended the basic law enforcement academy and have completed a post-academy training period of approximately one year. Since then, I have attended regularly scheduled mandatory training. In addition, I have attended numerous other classes and training opportunities, such as interviewing and interrogation techniques, investigating narcotics, theft and fraud crimes, and others. I have worked as a patrol deputy, I have trained new deputies, and I have worked as a community storefront deputy, a bicycle deputy and as a school resource deputy. I am currently assigned as a detective at the Southwest Precinct in the city of XXXXX. I have been in this position for over a year. In the course of my duties I have investigated numerous crimes, including burglary, larceny, forgery and fraud, assaults and drug investigations. As a deputy, and as a detective, I have also assisted in the investigation of other crimes, such as sex crimes and crimes in which computers are used. I have handled and helped with the handling of evidence related to the above crimes.

An Internet user who connects to the Internet through a dial-up phone connection to an Internet Service

Affidavit for Search Warrant (continued)

Provider is assigned a particular IP address for that session only, from the pool of IP addresses permanently assigned the Service Provider. (These temporary IP addresses are commonly referred to as “dynamic” IP addresses.) Service Providers routinely keep records correlating these temporary IP addresses to the customer account using their service. On many occasions, the Service Provider keeps a CallerID record of the phone number used for each connection to the Service Provider. Since access to a dial up account can be made from any computer, such CallerID records or other information are needed to determine the location from which the connection was made.

Users of other forms of Internet access, like over television cable lines, often receive permanent or long-term IP address assignments. These IP addresses (commonly referred to as “static” IP addresses) are not only uniquely identified with a particular customer account, they are also identified with a physical location (i.e., the terminus of the cable in the customer’s residence) and often with a particular network interface card in a specific computer. Communications shown to have originated at a particular cable modem IP address, in fact, originated from a computer located at the account address.

Background

Victim lives at XXXX in the city of Seattle. He is a teacher at XXXX High School, located at 456 Smith Street in the city of XXX, county of King. Victim created and maintains a website called www.website.com, which is about the family’s boat. The website has a “guestbook” that allows people who visit the website to post messages.

On 01-23-2002 Victim called King County Sheriff’s Office to report that his personal information (name, home address and phone number, and work e-mail address) was being used by an unknown suspect to place advertisements in the Seattle Times newspaper, SeattleInsider.com (an Internet website that provides a variety of services) and ebay.com (an Internet website where merchandise can be bought and sold). People then responded to the various advertisements, and the responses were sent to Victim’s e-mail address used at his place of work, victim@highschool.org. In addition, people would call Victim’s home phone number in response to these ads. The ads placed by the suspect on SeattleInsider.com ranged from classified ads to sell various merchandise to ads soliciting sex. Some of the sale of merchandise ads included the posting of Victim’s boat for sale. The information about Victim’s boat appeared to have come from Victim’s personal website. On 01-23-2002 Victim received over 27 e-mail responses to the ads placed by the suspect. The responses only stopped when Victim contacted SeattleInsider.com and the ads created in his name were deleted.

SeattleInsider.com records show that the originating IP address for the e-mail communications placing these ads to be assigned to a University in China — ustc.edu. This incident was documented under King County Sheriff’s Office case number XXXXX. The e-mail account, ustc.edu, was created from a free e-mail service operated by the University of Science and Technology of China (ustc). No suspect information was located at the time, and the case was inactivated. I received this case for follow-up.

Affidavit for Search Warrant (continued)

The Current Investigation

On 12-30-2002, I saw a story on King5 evening news. King5 reporter Elisa Hahn interviewed Victim about an ad supposedly posted by Victim on SeattleInsider.com. The ad read as follows:

“My buddy and I farm puppies and we grew too many for our expected Christmas sales. We will pass the saving on to YOU! Call me ASAP, these puppied [sic] HAVE to GO! Stock remaining after Jan. 16th will have to be put to sleep. So hurry now! TOP condition. 1-year warranty. Thanks!”

Victim’s name, home address and phone number were listed in the “Seller Information Contact” section. The ad evidently became newsworthy because it said the puppies were going to be “put to sleep” if not sold. After reporters talked to Victim, the news story became a story about Victim being a victim of Internet harassment.

On 12-31-2002, I received a phone call from Victim. He related the above story to me, and told me that he received numerous phone calls about the ad. He thought the same suspect as last year was involved.

In addition to the puppy ad, Victim said he received an e-mail at his home address (victim@home-email.com), with a copy forwarded to e-mail at work, with the following quote: “A man walks up to a strange beast in the desert after many days of walking. He is at the point of exhaustion when he sees that the beast is eating his own heart. He says, ‘Why are you eating your heart?’ And the beast replies, ‘I eat it because I like its bitter taste, and because it is my heart.’ -Stephen Crane.”

This e-mail came from: Victim victim@domain.edu. The subject was “whazzup victim?” The message was sent on 12-30-02 at 9:23:29 PM.

Further, Victim said two messages were posted in the “guestbook” on his personal website that appeared to be from the suspect. The first message was posted at 3:33 AM on 12-30-2002. When a user posts messages on this website they are allowed to enter their name, e-mail and physical address and a comment. This message was from Sender, the e-mail address was Victim’s home phone number (206-555-1212), the location was Victim’s home address and the “Comment” section read, “I like your boat. I bet if I had your boat I could have a lot of fun with it.”

The second message was posted at 11:36 PM on 12-30-2002. It was from Sender and the “Comment” section read, “DON’T YOU ERASE MY SHIT!”

Victim told me that he felt threatened and was afraid. He was more concerned with these new incidents because the suspect was now posting information on his home e-mail address and on his personal website. Further, the name Sender was derived from his son’s cat’s name and his brother-in-law’s last name. Victim told me that his home was burglarized in September 2002. Many items were stolen from his home, including his computer. The personal information the suspect has could have been taken from the family tree on the computer that was stolen. I documented this incident under King County Sheriff’s Office case number XXXXX.

I contacted Detective XXXXX in the Police Department fraud and computer forensics unit. He put me in touch with Deputy Prosecuting Attorney (DPA) XXX, who assisted by locating the IP address contained in the e-mail containing the Stephen Crane quote listed above. That IP address, contained in the full

Affidavit for Search Warrant (continued)

header information accompanying the e-mail, is XXX.XXX.XXX.XXX. DPA XXXX then assisted by using Internet resources to locate the ISP that the above IP address is assigned to, which is First ISP.NET. I called First ISP.NET and learned that the above IP address is sub-assigned to Second ISP. I called Second ISP and learned that they are an ISP, the above IP address is contracted to them, and that Second ISP assigned the above IP address to one of their customers. I spoke with Second ISP president, XXXXX, who will provide the subscriber information associated with the above IP address, if available, upon the service of a search warrant.

Based on the information detailed above, search warrant XXXXX was issued by King County Superior Court on Date, directing Second ISP to produce any and all subscriber information related to the use of IP address XXX.XXX.XXX.XXX between 6:00 PM (GMT) December 30, 2002, and 6:00 PM (GMT) December 31, 2002.

On 02-19-2003, Second ISP provided the following subscriber information for IP address XXX.XXX.XXX.XXX:

Third Record Holder.
Santa Clara, CA 95054

The contact person given was XXXX, and the following phone numbers were listed: 408-555-1212 and 800-555-1212. I called the 408-number and a male identifying himself as XXXXX told me he is the owner of Third Record Holder. I explained the details of the incident documented in the attached affidavit for search warrant to XXX, and he told me that his friend, Friend, runs a free Internet service out of XXXXX's business. XXXX said if I faxed him a letter containing the information I was seeking, he would provide the requested information within 24 hours.

Based on this information I completed an addendum to search warrant XXXX. On Date King County Superior Court issued search warrant XXXXX, directing Third Record Holder to produce the same information detailed above.

I then faxed this warrant to XXXXX, owner of Third Record Holder. On Date I received a fax from Friend in response to the search warrant. He said XXXXX gave the search warrant to him. Friend is the owner of Friend's Company. Friend said he operates a web service, through Friend's Company, on the IP address specified in the warrant, and Third Record Holder subleases the Internet bandwidth to him. He said his service is a "free e-mail" service for the alumni community of a small number of colleges. The users are free to sign up for their own e-mail address. Since they are not paying customers, he does not keep any identification information. However, he has the log file for all of the users, which he said he could send to me. I drafted a letter pointing out that this specific info is requested in the warrant, and I asked him to forward it to me. I sent the letter to him via fax. On Date I received a fax from Friend, which contained the requested log information. I then looked for the user victim@domain.com, which was used by the suspect to contact the victim. The log showed that victim@domain.com logged onto Friend's system on the following occasions:

12/30/02 21:45:35: User victim@domain.com authenticated (all times PST)
12/30/02 22:28:38: User victim@domain.com authenticated

Friend also provided the following additional times that the user, victim@domain.com, has logged onto his system:

Affidavit for Search Warrant (continued)

01/01/03 08:29:04: User victim@domain.com authenticated (all times PST)
01/02/03 06:11:42: User victim@domain.com authenticated
01/10/03 11:36:36: User victim@domain.com authenticated
01/13/03 00:32:38: User victim@domain.com authenticated
01/13/03 00:33:20: User victim@domain.com authenticated
01/14/03 21:00:17: User victim@domain.com authenticated

On 02-25-2003, I shared this information with DPA XXXXX, then asked Friend to keep any logs showing the originating IP address for people logging into his system, specifically for the user victim@domain.com. On 02-27-2003 Friend responded to DPA XXXX, stating that his records showed that the user victim@domain.com logged onto his system at about 22:28 PST on 12-30-2002 from IP address XXX.XXX.XXX.XXX. DPA XXXX learned that this IP address is assigned to Fourth ISP. As noted in the original affidavit for search warrant XXXX, Victim received a message on his personal e-mail from victim@domain.com at 21:23:29 on 12-30-2002.

I then completed Addendum A to search warrant XXXX. On Date King County Superior Court issued search warrant XXXX (Addendum A), directing Fourth ISP to produce the above detailed information. On 03-07-2003, I received a phone call from Fourth ISP informing me that IP address XXX.XXX.XXX.XXX was recently sold to Comcast Cable Communications. I called Comcast and confirmed this. I then completed Addendum B to search warrant XXXX. On Date King County Superior Court issued search warrant XXXX (Addendum B), directing Comcast to produce the above detailed information. On 03-20-2003, I received a response from Comcast. The following subscriber information was provided:

Subscriber's Name:	Suspect's Mother
Billing/Service Address:	123 Smith Street Seattle, WA
Telephone Number:	206-555-1212
E-mail ID:	suspect@comcast.net
Connection Type:	Cable Modem
NIC MAC:	XX:XX:XX:XX:XX
Modem MAC:	XX:XX:XX:XX:XX
Activation Date:	Date
Account Status:	Active
Payment Method:	Check/Cash

I called Victim and asked him if the name "Suspect" meant anything to him. Victim said he had two Suspect brothers in his music class, Suspect One and Suspect Two. When Suspect One (the older brother) was in Victim's class, he did not qualify for a special music ensemble. Suspect One was very upset by this, and wrote a long letter to Victim. As a result there was a meeting between the school's vice principal and Suspect One's mother. Suspect One was still not selected for the ensemble. Victim wrote a letter of encouragement to Suspect One, and Victim believed the issue was resolved. Victim said that when Suspect Two was in his class, he had "honesty issues." In both cases, Mother was unhappy with how Victim handled her son's issues.

Victim told me now that I brought up the Suspect name, some things made sense. Victim reminded me of

Affidavit for Search Warrant (continued)

some of the nuisance ads placed in SeattleInsider.com in his name in January 2002. The caption in two ads posted in SeattleInsider.com Classifieds on 01-20-2002 read "WANTED: ANY USED INSTRUMENTS!" The ad description read as follows: "I need ANY used instruments for a charitable High School band project...whatever condition, I will take it. Please respond the sooner the better, Victim, High School Band Director." The ad listed Victim as the seller/contact person, and his home address and phone number were given. On the same day Victim received an e-mail addressed to his work e-mail address (victim@highschool.org) which read as follows: "Congrats on all that shit you just bought! May the force be with you. Fuck you, eat shit, and die. Regards, David Smith." The e-mail was from Victim [victim@ustc.edu], which was received from "USTC Alumni E-mail System, <http://mail.ustc.edu>." This is the same e-mail service that the suspect used to send other messages to Victim. Also, the date of the first SeattleInsider.com ads (01-20-2002) is the activation date of the Suspect's Comcast account.

Based on this information, there is probable cause to believe that evidence of the crimes of telephone harassment, stalking and identity theft will be found at the residence associated with the Comcast account from which the e-mail in question originated, including records, in whatever form created or stored, including records located in any computer in that location connected to or capable of being connected to the Internet. The evidence would include:

- [records of any e-mail or other electronic communication showing
 - [the placement of the ads
 - [visits to Victim's website
 - [efforts to obtain information about Victim
 - [knowledge or use of the ustc.edu website or e-mail account
- [copies of any of the ads
- [copies of any of the media reports of this incident
- [evidence of any motive for these actions
- [evidence of use of the computer(s) by any individual
- [evidence of dominion and control

Based upon my knowledge, training and experience, and the experience of other law enforcement personnel with whom I have consulted on this issue, it is a fact that effective searches and seizures of evidence from computers commonly require law enforcement officers to seize most or all computer items (hardware, software and instructions), then have these items processed later by a qualified forensic expert in a controlled laboratory environment. This is true because computer storage devices (hard drives, disks, diskettes, tape, CDs and removable drives) can store thousands of pages of information in random order with deceptive file names. Directories and subdirectories that contain these files can also be electronically hidden from normal view. Special forensic software is required to detect these hidden directories.

Searching computer systems for criminal evidence is a highly technical process requiring skill in a properly controlled environment. The vast array of computer hardware and software available to the public requires that computer experts specialize in some systems and applications. It is difficult to predict before a search which expert should analyze the system and data. The search of a computer is an exacting procedure that is designed to protect the integrity of the evidence and to recover hidden, erased, compressed, protected and / or encrypted files. Since computer evidence is extremely vulnerable to tampering or destruction from both external sources or from destructive codes imbedded in the system in the form of a "booby trap," the controlled environment of the laboratory is essential to complete an

Affidavit for Search Warrant (continued)

accurate analysis and retrieval.

In order to fully retrieve data from a computer system, the forensic analyst needs all magnetic storage devices, as well as the central processing unit (CPU). In cases like this one, where the evidence consists of electronic communications, the system hardware demonstrating the capability to engage in electronic communication is also essential to show the nature and quality of the graphic images that the system could produce. In addition, the forensic analyst needs all the system software, encryption, encoding, archiving, unarchiving and security software which may have been used to retrieve, store, create, transmit, encrypt or encode data. I seek the above noted items to facilitate the search with minimal intrusion and to lessen the likelihood of damage to non-pertinent files or equipment.

We request permission to seize any computers found on site which are connected to the Internet or capable of being connected to the Internet (including any computer with a modem or network interface card) along with all peripheral equipment which demonstrates electronic communication capability or which is needed to analyze and view the contents of any storage media, for the purpose of taking those computers offsite for forensic examination. We also request permission to seize any storage devices or media for the purpose of taking offsite for forensic examination.

Affiant

Agency, Title and Personnel Number

Subscribed and Sworn to before me this ____ day of _____, 20__.

Judge

Issuance of Warrant Approved:

By

XXXXXX, WSBA No. XXXX
Senior Deputy Prosecuting Attorney